RATIO / CASE READING SHEET

Salabiaku v. France

European Court of Human Rights | ECHR-10519-83 | France | 1988

Editorial reading aid | source pinpoints checked locally

Ratio reading aid, not an official case summary. Verify against the full judgment before use. No assessment of an individual case's prospects.

Charge

Illegal importation of narcotics and the customs offence of smuggling prohibited goods. The appeal acquitted the applicant on the narcotics charge but upheld the customs conviction.

Paragraphs 12-14

What was at stake

First instance: two years' imprisonment, a ban on residing in France and a FRF 100,000 customs fine. The narcotics conviction was set aside on appeal. Do not present the initial prison term as a current or final exposure. A prosecutor-requested term is not recorded.

Paragraphs 13-14

Presumption of innocence

The complaint concerned a legal presumption attached to possession of prohibited goods. The Court examined reasonable limits, the importance of what was at stake, defence rights and the actual use of the presumption.

Paragraphs 27-30

Court's conclusion

No Article 6(2) breach in this case. The domestic courts assessed the evidence and avoided applying the customs presumption automatically. The Court also found no Article 6(1) breach.

Paragraphs 30-31; operative provision

For a lawyer reviewing a new matter

Identify the exact presumption, whether the defendant could rebut it, and how the court assessed the evidence. A statutory presumption alone does not establish a violation.

Paragraphs 28-30

Source: https://sherloc.unodc.org/cld/uploads/res/case-law-doc/drugcrimetype/_irb/salabiaku_v__france_html/SALABIAKU_v._FRANCE.pdf

Source text SHA-256: 629f087a852dc986 | Saved original available in the local case library